

Draft Ethics Complaints - WA Governor, AG, Secretary of State

(Attorney Review Only)

Draft Executive Ethics Board complaints — Governor, Attorney General, and Secretary of State of Washington

Status: **Draft v1** — prepared as background material for attorney review. **This document is NOT a filed complaint and does not assert that any violation has been proven.** It organizes the research accumulated in `civil-rico-and-qui-tam-2026-postal-litigation.md` (the “Background Report”) into the structure required by the Washington State Executive Ethics Board’s (“EEB”) own complaint form, so Mr. Kirk can evaluate whether, and how, to proceed.

Prepared by: Ralph Burton Harris III. **Prepared for:** William K. “Bill” Kirk, President, Washington Gun Law (Spokane, WA).¹

NOTE TO COUNSEL (not part of any complaint)

1. Process confirmed directly from the EEB’s own materials²³:

- The EEB enforces RCW ch. 42.52 against “statewide elected officers and all other officers and employees in the executive branch, boards and commissions, and institutions of higher education.” The Governor, the Attorney General, and the Secretary of State are each statewide elected executive-branch officers and therefore squarely within the EEB’s jurisdiction — this is a jurisdictional fit the Background Report had flagged as unconfirmed; **it is now confirmed.**
- **A separate complaint form must be filed for each individual officer** — the form itself states this requirement. This document is therefore organized as three separate draft complaints, not one.
- **Five-year limitations period:** “The issue(s) you are concerned with must have occurred within 5 years from the date of the alleged violation.”

¹See Background Report at n.13 (Attorney Biography, William K. Kirk, Washington Gun Law).

²Washington Executive Ethics Board, “File a Complaint,” <https://ethics.wa.gov/enforcement/file-complaint> (last visited Oct. 1, 2026) (describing EEB jurisdiction over “statewide elected officers and all other officers and employees in the executive branch, boards and commissions, and institutions of higher education,” and whistleblower-retaliation protections under RCW 42.52.410).

³Washington Executive Ethics Board, *Ethics Complaint Form* (2015), available at <https://ethics.wa.gov/sites/default/files/public/documents/2015%20Complaint%20Form.pdf>, saved locally at `sources/eeb-complaint-form.pdf` (text extracted with pypdf) (confirming: a separate form must be filed for each individual subject officer; a five-year limitations period from the date of the alleged violation; mail/email filing to the EEB at PO Box 40149, Olympia, WA 98504-0149 or ethics@atg.wa.gov; optional complainant anonymity with a tradeoff against being kept informed; and the violation-type checkboxes quoted above).

- Complaints must be submitted on the official form by mail (PO Box 40149, Olympia, WA 98504-0149) or email (ethics@atg.wa.gov), not in free-form letter format.
 - The complainant's name is optional, but anonymity forfeits any ability to be kept updated on the investigation or consulted about details. A complainant may also request that identifying information be kept exempt from public disclosure under RCW 42.56.240 by initialing the form.
 - **Remedy structure:** the EEB process does not award the complainant damages. Its outcome, if a violation is found, is an administrative determination/enforcement action against the official — this is consistent with, and confirms, the Background Report's prior statement that RCW ch. 42.52 "has no private right of action for damages."⁴
 - A copy of the official form, as downloaded, is saved locally at sources/eeb-complaint-form.pdf.⁵
2. **The single largest gap, carried over from the Background Report and not yet closed:** no specific act, date, or document has been supplied showing that Governor Ferguson, Attorney General Brown, or Secretary of State Hobbs personally used their office for personal gain or partisan advantage, as opposed to performing ordinary official duties (e.g., holding a press conference, communicating with DOJ about a federal demand for voter data, or administering elections). **Each draft complaint below says so explicitly, rather than inventing specificity that has not been supplied.** Filing any of these in their current state risks the EEB declining to investigate for lack of a plausible, specific allegation — a central subject for Mr. Kirk's professional judgment before anything is submitted.
 3. **Officeholder identification:** Governor Bob Ferguson and Attorney General Nick Brown are each independently confirmed via the YouTube video already cited in the Background Report.⁶ The Secretary of State, Steve Hobbs, is not independently confirmed via his own office's website in this research pass (its pages were not machine-readable to the tools available); his officeholding is inferred from his consistent appearance as the named official-capacity defendant in Washington election-administration litigation (e.g., *Washington State Alliance for Retired Americans v. Hobbs*, No. 3:23-cv-06014 (W.D. Wash.)), which is the

⁴See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

⁵Washington Executive Ethics Board, *Ethics Complaint Form* (2015), available at <https://ethics.wa.gov/sites/default/files/public/documents/2015%20Complaint%20Form.pdf>, saved locally at sources/eeb-complaint-form.pdf (text extracted with pypdf) (confirming: a separate form must be filed for each individual subject officer; a five-year limitations period from the date of the alleged violation; mail/email filing to the EEB at PO Box 40149, Olympia, WA 98504-0149 or ethics@atg.wa.gov; optional complainant anonymity with a tradeoff against being kept informed; and the violation-type checkboxes quoted above).

⁶See Background Report at n.16 (YouTube video, Jan. 26, 2026 press conference, Gov. Ferguson and AG Brown).

⁷Docket, *Wash. State All. for Retired Ams. v. Hobbs*, No. 3:23-cv-06014 (W.D. Wash. filed Nov. 7, 2023, terminated Mar. 15, 2024), available at <https://www.courtlistener.com/docket/67986976/washington-state-alliance-for-retired-americans-v-hobbs/> (last vis-

normal case-caption convention for suits against a sitting Secretary of State in that capacity.⁷ **This should be confirmed directly against the Secretary of State’s own website before filing.**

Complaint 1 of 3 — Governor Bob Ferguson

Following the EEB form’s own fields and numbered questions:⁸

Subject: Bob Ferguson, Governor of Washington, Office of the Governor, Olympia, WA.

1. Type of violation(s) being reported: Based on the user’s stated underlying concern — “officials using their office for personal gain, including for partisan advantage” — the closest-fitting checkbox categories on the official form are “**Use of persons, money, or property for private gain**” (RCW 42.52.020, .070) and “**Use of public resources for political campaigns**” (RCW 42.52.180).⁹ **Neither category has yet been tied to a specific identified act by Governor Ferguson; this is a provisional categorization based on the general theory supplied, not a conclusion that either box is the correct one.**

2. When and where did the violation(s) occur? (P) Not yet supplied. The only dated, confirmed event connecting Governor Ferguson to this matter is a January 26, 2026 press conference alongside Attorney General Brown, held at a location not specified in the available metadata.¹⁰

3. Description of the violation(s) in detail: (U)/(P) No specific statement, act, or document by Governor Ferguson has been identified in this research that would, on its own terms, describe personal or partisan gain from public office. The January 26, 2026 press conference is confirmed to exist and to be officially published by the Washington Attorney General’s channel, but its audio/video content has not been transcribed or reviewed by any tool available to this research, so no specific quoted statement can yet be attributed to Governor Ferguson for purposes of this complaint.¹¹ **Plaintiff/complainant must supply the specific timestamp and quotation relied upon, or a different specific act, date, and document, before this section can be completed.**

4. Supporting documentation: The video itself (citation at n.16); no other document has been identified.

5. Witnesses: (P) None yet identified.

ited Oct. 1, 2026) (official-capacity case caption naming Steve Hobbs, consistent with his holding the office of Secretary of State; not independently cross-checked against the Secretary of State’s own website in this pass).

⁸Washington Executive Ethics Board, *Ethics Complaint Form* (2015), available at <https://ethics.wa.gov/sites/default/files/public/documents/2015%20Complaint%20Form.pdf>, saved locally at [sources/eeb-complaint-form.pdf](#) (text extracted with pypdf) (confirming: a separate form must be filed for each individual subject officer; a five-year limitations period from the date of the alleged violation; mail/email filing to the EEB at PO Box 40149, Olympia, WA 98504-0149 or ethics@atg.wa.gov; optional complainant anonymity with a tradeoff against being kept informed; and the violation-type checkboxes quoted above).

⁹See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

¹⁰See Background Report at n.16 (YouTube video, Jan. 26, 2026 press conference, Gov. Ferguson and AG Brown).

¹¹See Background Report at n.16 (YouTube video, Jan. 26, 2026 press conference, Gov. Ferguson and AG Brown).

6. How do you know about the information you are reporting? (P) To be completed once a specific act is identified (e.g., personal observation, news reporting, public records request).

Complaint 2 of 3 — Attorney General Nick Brown

Subject: Nick Brown, Attorney General of Washington, Office of the Attorney General, Olympia, WA.

1. Type of violation(s) being reported: Same provisional categorization as Complaint 1 — **“Use of persons, money, or property for private gain”** and/or **“Use of public resources for political campaigns”** — pending a specific identified act.¹²

2. When and where did the violation(s) occur? (C) January 26, 2026 press conference (same event as Complaint 1).¹³ **(P)** No other date or location has been supplied. The Background Report separately documents that Washington was among 24 states sued by the U.S. Department of Justice over voter-roll access as of January 28, 2026 — two days after this press conference — a timing the Background Report already flagged as “plausible but unconfirmed” as a connection, not established.¹⁴¹⁵

3. Description of the violation(s) in detail: (U)/(P) As with Complaint 1, no specific statement by AG Brown at the press conference has been transcribed or quoted. If the theory is instead that AG Brown’s *legal defense* of Washington’s election procedures against the DOJ’s voter-roll demands (see Background Report Part 7) itself constitutes “use of office for partisan advantage,” **that theory would need to be stated explicitly and would face a substantial difficulty:** performing the Attorney General’s ordinary statutory duty of representing the state in litigation is not, without more, a “private gain” or improper “special privilege” under RCW 42.52.020/.070 — those provisions target personal or third-party benefit obtained *through* the office, not the performance of the office’s own lawful defensive functions. **This distinction should be confronted directly, not elided, before this complaint is filed.**

4. Supporting documentation: The video (n.16); the Senate letter documenting Washington’s inclusion among the sued states (n.18).

5. Witnesses: (P) None yet identified.

6. How do you know about the information you are reporting? (P) To be completed once a specific act is identified.

¹²See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

¹³See Background Report at n.16 (YouTube video, Jan. 26, 2026 press conference, Gov. Ferguson and AG Brown).

¹⁴See Background Report at n.18 (Senate letter to Att’y Gen. Bondi, Jan. 29, 2026, listing Washington among 24 states sued by DOJ over voter rolls).

¹⁵See Background Report, Part 7 (noting the press-conference video is dated two days after the Bondi-related voter-roll developments, “a plausible but unconfirmed connection”).

Complaint 3 of 3 — Secretary of State Steve Hobbs

Subject: Steve Hobbs, Secretary of State of Washington, Office of the Secretary of State, Olympia, WA (officeholding inferred, not directly confirmed — see Note to Counsel ¶3 above).

1. Type of violation(s) being reported: Provisionally, “Use of persons, money, or property for private gain” and/or “Use of public resources for political campaigns,” pending a specific identified act; given the Secretary of State’s direct statutory role administering elections, a vote-dilution theory (Background Report Part 5) might instead be framed here as “Activities incompatible with public duties” if a specific administrative act or omission is identified.¹⁶

2. When and where did the violation(s) occur? (P) Not yet supplied. No document or statement by Secretary Hobbs has been located or cited anywhere in this research to date — he does not appear in the Background Report at all prior to this document.

3. Description of the violation(s) in detail: (P) Entirely unsupplied. **This is the weakest of the three draft complaints as a matter of evidentiary support:** no act, statement, policy decision, or document attributable to Secretary Hobbs has been identified anywhere in this research. If the underlying theory is that Washington’s general election administration (ballot mail processing, voter-roll maintenance) diluted Plaintiff’s vote, that is a claim about a *system*, not yet about a *specific act of this official* — and RCW ch. 42.52 requires the latter (a specific officer’s specific misuse of office), not a general policy disagreement. **Before this complaint is drafted further, a specific decision, statement, or document from Secretary Hobbs (or his office) needs to be identified.**

4. Supporting documentation: (P) None yet identified.

5. Witnesses: (P) None yet identified.

6. How do you know about the information you are reporting? (P) Not yet supplied.

¹⁶See Background Report at n.15 (Wash. Rev. Code ch. 42.52).

Appendix — Evidentiary-gap summary

Complaint	Specific act identified?	Documentation	Overall readiness to file
Gov. Ferguson	No — only an un-transcribed press conference	Video only	Not ready
AG Brown	No — same press conference; litigation-defense theory faces a doctrinal difficulty	Video + Senate letter	Not ready
SOS Hobbs	No — no act, statement, or document identified at all	None	Not ready; weakest of the three

Consistent with the Background Report’s own recurring caveat: **the legal theory and the jurisdictional fit are now reasonably well understood, but the specific factual predicate for each individual official has not yet been supplied.** Supplying that predicate — a date, a document, a quote, or a specific administrative decision, for each official separately — is the necessary next step before any of these three draft complaints could responsibly be finalized and mailed to the EEB.

Footnotes